

Cal.App.3d 1624, 1627.) “The courts...will not close their eyes to situations where a complaint contains allegations of fact inconsistent with attached documents.” (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.)

4. 9:00 AM CASE NUMBER: C24-01098
CASE NAME: LAILA ELFAZOUZI VS. ABDESASALAM MANSORI

***FURTHER CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

This case management conference (CMC) trails the hearing on Lines 8, 9, 10 and 11, which are Counsel Dyas’ Motion to Be Relieved as Counsel. Since these motions are granted, as unopposed, this CMC is continued to July 30, 2026 at 8:30 a.m. in Dept. 16. No appearance is required on February 4, 2026.

Law & Motion

5. 9:00 AM CASE NUMBER: C23-00098

CASE NAME: CARL PREWITT VS. TEXACO INC.

HEARING ON SUMMARY MOTION

FILED BY: TEXACO INC.

TENTATIVE RULING:

This hearing is continued, *sua sponte*, to March 4, 2026 at 9:00 a.m. in Department 16.

6. 9:00 AM CASE NUMBER: C23-02494

CASE NAME: JON JONSSON VS. CARLOS BADELL

HEARING ON MOTION FOR SUMMARY JUDGMENT

FILED BY: CITY OF RICHMOND

TENTATIVE RULING:

Before the Court is a motion for summary judgment or, in the alternative, summary adjudication, filed by defendant, the City of Richmond (“City”). As discussed below, the motion is **granted**. The City shall circulate and submit, separate from any order on this motion, a proposed form of judgment.

I. Background

On April 19, 2023, plaintiff, who was riding a motorized scooter in the bicycle lane, was struck by a truck driven by defendant Carlos Badell. The truck and scooter had both been traveling the same direction on West Cutting Boulevard, near the intersection with Canal Boulevard. Badell turned right into a parking lot, struck plaintiff, and reported being unable to see plaintiff because the bicycle lane was situation behind a row of cars that were parked along Cutting, parallel to Cutting, between traffic and the bicycle lane. (Separate Statement of Undisputed Material Fact, hereinafter “SSUMF,” Fact Nos. 5, 9, and responses by plaintiff and Badell.) Plaintiff has complete memory loss from a point somewhere after turning onto Cutting Boulevard, before the collision occurred. (SSUMF, Fact No. 6, and responses by plaintiff and Badell.)

On October 3, 2023, plaintiff brought suit against the City of Richmond, as well as the individual defendant, Carlos Badell. (SSUMF, Fact No. 1, and responses by plaintiff and Badell.)